

GENERAL TERMS AND CONDITIONS OF USE

These General Terms and Conditions of Use (hereinafter the “Terms”) govern access to and use of the *ePokratis MedAiConnect* application (the “Application”), owned by Telematic Medical Applications LTD (“TMA”), a Greek company registered with the General Commercial Registry under number 007904401000, with Tax Identification Number 998889850, and having its registered office at 151 Al. Papanastasiou Avenue, Piraeus, Attica, Postal Code 18533, Greece.

TMA can be contacted at:

Phone: +30 211 1165330–2

Email: info@tma.gr

For any inquiries regarding these Terms or the functionality of the Application, users may contact TMA via the email address above.

For the purposes of these Terms, a “user” is defined as any individual who accesses, browses, uses, or otherwise engages with the services offered by the Application.

Manufacturer:

Telematic Medical Applications LTD

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1. ACCEPTANCE OF GENERAL TERMS OF USE

Before using the *ePokratis MedAiConnect* application, all users must carefully read and explicitly accept these General Terms and Conditions of Use. Access to and use of the Application is permitted only after users have confirmed their acceptance of these Terms.

By accessing, browsing, or using the Application, the user acknowledges that they have read, understood, and agreed to be legally bound by these Terms, without limitation or reservation.

Access to the Application and its services is limited to individuals who:

- Are of **legal age under applicable national law** (e.g., 18 years old in Greece),
- Have **full legal capacity**, and
- **Meet the minimum age requirement set by the Application’s age rating** in the relevant App Store region.

If a user does **not meet these requirements** or **does not agree** with any provision of these Terms, they must refrain from accessing or using the Application and its services.

2. **SERVICES AND FUNCTIONALITY OF ePokratis MedAiConnect**

The services offered through the ePokratis MedAiConnect application include, but are not limited to, the following:

- **Teleconsultation and Online Chat:** The Application provides a secure environment for users to interact with licensed healthcare professionals contracted with TMA, as further described in the Privacy Policy. Through this service, users may schedule appointments for teleconsultations, conduct video calls with selected healthcare professionals, and receive medical advice upon payment of the applicable fee.
- **Vital Signs Measurement:** The Application enables users to measure vital signs using compatible Bluetooth medical devices (such as blood pressure monitors, oximeters, thermometers, weight scales, electrocardiographs, and multi-parameter monitors). In addition, the Application provides AI-powered estimations of stress level, pulse rate, and respiratory rate using the device's camera and remote photoplethysmography (rPPG) technology.

These AI-generated measurements are provided solely for informational and wellness purposes and are not intended for clinical use, diagnosis, or treatment. The results are not stored within the Application and are visible only to the user during each session.

- **Manual Data Entry of Measurements / Diagnostic Tests:** Users may manually input measurement values obtained from medical devices not compatible with the Application and upload medical test results or related health documents in digital format.

Manually entered values for weight, blood pressure, blood glucose, and pulse rate (from ECG-compatible devices) are displayed in graphical form within the Application for the user's reference.

AI-generated estimations such as stress level, pulse rate, and respiratory rate are excluded from graph visualizations and are provided solely for informational and wellness purposes.

- **Location Sharing Feature:** Users may voluntarily share their geographic location with TMA's coordination center by tapping

the “Send Location” button within the Application. This feature is intended to assist users in requesting support or communicating their current whereabouts for medical or other assistance. Location sharing is initiated only upon explicit user action and is not continuously tracked by the Application.

- **Device, Doctor Session and Subscription Purchases:** Users may purchase compatible medical devices and doctor consultation sessions through secure online stores managed by TMA, which are offered exclusively to users of the Application.

New users are granted one free AI session redemption unit upon account creation, enabling them to try AI-based measurement sessions, including stress level, pulse rate, and respiratory rate assessments. These sessions are intended solely for informational and wellness purposes.

To continue using AI-based wellness assessments beyond the initial free session, users must activate a paid subscription. Subscriptions are available via in-app purchases and offer the following additional benefits for doctor sessions:

- Upon first activation of the **Basic subscription**, users receive **one free doctor session**. This benefit remains available even if the user had previously downgraded from an Advanced subscription, provided the Basic subscription had never been activated before.
- Upon first activation or upgrade to the **Advanced subscription**, users receive **three free doctor sessions**.

All subscription purchases are processed via the App Store, in accordance with Apple’s terms of service and billing policies. These purchases are also subject to the provisions outlined in this document and the Privacy Policy.

Intended Use of ePokratis MedAiConnect: ePokratis MedAiConnect was developed to facilitate telemedicine services, enabling licensed healthcare professionals contracted with TMA to assess the user’s health status.

The Application does not provide medical diagnoses or treatments and is not a substitute for professional medical advice. It serves exclusively as a secure platform for communication and information exchange between users and healthcare professionals.

Users should always consult a qualified healthcare provider for medical decisions or treatment. In the event of a medical emergency, contact local emergency services immediately.

Intended Users of ePokratis MedAiConnect: ePokratis MedAiConnect is intended for individuals seeking health services for themselves or others, such as caregivers or family members, who wish to obtain these services in a more immediate and convenient manner through telemedicine. This platform enables faster access to healthcare professionals and facilitates efficient communication for health-related needs.

Notes: The services offered by ePokratis MedAiConnect are intended exclusively to provide a secure system for storing medical information and facilitating telecommunication services between users and healthcare professionals. Any content or information provided through the Application cannot replace the proper interpretation, diagnosis, and judgment of a doctor, nor does it eliminate the need for specialized medical advice regarding a specific case. Users experiencing a medical emergency should immediately contact their doctor or call 112 (or the corresponding emergency number for their location).

AI-generated stress level, pulse rate, and respiratory rate estimates are not intended for clinical use or diagnostic evaluation and should not be interpreted as medical advice.

Under no circumstances does ePokratis MedAiConnect provide diagnoses, or recommend the prescription, cancellation, or modification of any medical treatment to users.

The Application connects and interacts with a web application, part of the ePokratis MedAiConnect ecosystem, to enable healthcare professionals/providers to offer telemedicine services to the Application's users.

3. DATA COLLECTION

During the use of the Application, personal data as outlined in paragraph 2 of the PRIVACY POLICY are collected. Personal data are collected and stored exclusively for the purposes specified in paragraph 3 of the PRIVACY POLICY.

The user is responsible for the information they enter into the Application and acknowledges that failure to provide certain information or the provision of false information may result in the improper delivery of services by the healthcare professional.

4. USER OBLIGATIONS

All data provided by the user through the Application must be truthful. The user guarantees the validity of all data, medical and non-medical, that they enter into the Application.

The user must provide data relevant to them, avoiding infringement on third-party rights, particularly intellectual property, industrial property, or image rights. In case of non-compliance, the user will be liable to third parties for any resulting damages, while TMA assumes no responsibility for related damages.

The user must adhere to applicable laws and respect the rights of third parties when using the Application's content and services. The user also agrees to use the Application per these General Terms of Use, good industry practices, and public order.

Indicatively and not restrictively, the user is prohibited from:

- Providing false, defamatory, harmful, or slanderous information or information that affects the honor, reputation, and prestige of others.
- Blocking, replacing, modifying, or copying the Application content.
- Performing actions that could harm the Application's infrastructure functionality.
- Using any materials or information contained in the Application for illegal purposes or purposes expressly prohibited in these General Terms of Use or purposes contrary to TMA's rights and interests, its users, and/or third parties. The user is liable in cases of non-compliance with these General Terms of Use or any conduct that harms, disables, overloads, degrades, or obstructs the normal use of the Application.

TMA may deny or withdraw access to the Application to any user who does not comply with these General Terms of Use, without prior notice. The non-compliant user will be liable for any resulting damage.

The user must inform TMA of any system malfunction so that necessary actions can be taken to rectify it.

5. TMA'S RESPONSIBILITY

TMA ensures the proper functioning of the ePokratis MedAiConnect system and backs up the user's data and files.

TMA provides unlimited storage for file uploads (medical tests and personal medical files) to each user, conditional upon subscription purchase.

TMA offers operational support from 9:00 a.m. to 5:00 p.m. Greek time for inquiries regarding the Application. This service is provided in Greek and English.

TMA also offers technical support from 9:00 a.m. to 5:00 p.m. Greek time for password recovery and system malfunctions.

Contact numbers for technical and operational support are +30 211 1165330-2.

TMA is not responsible for the quality of the medical services provided nor for any damage of any kind that may be due to the lack of honesty, accuracy, completeness, and/or timeliness of the data provided by the user to the Application.

TMA is not responsible for how the ePokratis MedAiConnect system is used by each individual user.

TMA is not liable for any damages that may arise from interference, omissions, interruptions, malware, malfunctions, and/or disconnections in the operational functioning of this electronic system, the user's mobile phone or devices, or medical equipment, for reasons beyond TMA's control, which may hinder or delay the provision of services or navigation within the Application. TMA is also not responsible for delays or obstacles in usage caused by deficiencies or overload of the Internet or other electronic systems, or for the inability to provide the service or denial of access due to reasons not attributable to TMA, including actions by users, third parties, or circumstances of force majeure. TMA does not control users' use of ePokratis MedAiConnect.

TMA is not responsible for damages of any kind that may result from the availability and technical continuity of the Application's operation. In any case, TMA will take all necessary actions to restore its services in the event of a technical issue.

All users of the Application agree and consider TMA fully exempt from any claims arising from issues caused by the reasons described in this section.

Upon the user's exit from the Application, TMA's terms and policies no longer apply.

6. TECHNICAL SPECIFICATIONS FOR OPTIMAL FUNCTIONING

For the best experience when using Bluetooth-connected devices with the ePokratis MedAiConnect app, it is recommended to follow these technical requirements:

1. **Bluetooth Version Compatibility:** Digital devices should use the same Bluetooth version as the mobile device to avoid compatibility issues or reduced connection speeds due to version differences.
2. **Device Hardware Quality:** The Bluetooth module of the digital device should be high-quality and optimized for quick pairing, minimizing delays in the connection process.
3. **Battery Level/Settings Requirements:** To ensure a stable and immediate Bluetooth connection, the digital device's battery level should be above 30 percent. Additionally, the mobile device should not be in power-saving mode while performing AI-based stress level, pulse rate, or respiratory rate measurements.
4. **Device Interference:** The presence of other nearby Bluetooth or wireless devices may cause interference and delays in connection. It is recommended to disable other nearby Bluetooth devices to reduce interference.
5. **Signal Interference:** Bluetooth operates in the 2.4 GHz frequency band, which is also used by other devices (e.g., Wi-Fi routers, microwaves, wireless peripherals). Interference from these devices may delay connection times. Connecting is recommended in areas with less wireless traffic.
6. **Crowded Bluetooth Environments:** In environments with many Bluetooth devices (e.g., busy areas), the mobile device may experience delays in recognizing and connecting to the digital device's Bluetooth.
7. **Multiple Simultaneous Bluetooth Connections:** Multiple active Bluetooth connections (e.g., headphones, wearable devices, or other smart devices) may slow the connection process for new devices, as the mobile device needs to manage each different connection simultaneously.
8. **Distance and Signal Strength:** For a stable connection, the digital device should be placed close to the mobile device. Connection may delay or weaken when devices are far apart.
9. **Background Processes:** Running multiple apps or processes in the mobile device's background may hinder Bluetooth detection and connection. For optimal performance, reduce background processes during setup.
10. **Software Updates:** Regularly check for updates for both the digital device and the mobile device, as updates often improve connectivity and speed.

11. **Device Settings:** Ensure the digital device is in pairing mode. Adjust connection settings (e.g., pairing prompts or security options) as needed for smooth connection. If issues persist, restart both devices to clear any temporary issues with the Bluetooth stack or connection cache.

To ensure optimal accuracy for AI-based stress level, pulse rate, and respiratory rate measurements, please follow the instructions below:

1. **Device Setup**

- Ensure the mobile device's battery level is at least 30 percent and disable power-saving mode.
- Check that the camera lenses are clean and free from scratches or obstructions.
- Place the device on a stable base approximately 30 cm (about 12 inches) away from your face.
- Align the device so that the front camera is at eye level and parallel to your face, ensuring a clear and stable image.
- Use a stable base to prevent any movement or shaking of the device during measurement.

2. **Face Positioning**

- Sit still and avoid movements during the measurement.
- Keep your feet flat on the floor and do not cross your legs.
- Ensure that your face is not obscured by hair or accessories, such as hats, sunglasses, or masks.
- Avoid talking or making significant facial expressions and remain focused on the screen until the measurement is complete.

3. **Environmental Conditions**

- Ensure even lighting on your face and avoid environments with multiple or conflicting light sources.
- For best results, position yourself with a single light source directed toward your face. Choose a location where no direct light shines on the camera, such as sitting near a wall.

- Avoid direct sunlight exposure on the camera.
- Make sure the background remains stable and avoid reflective surfaces or objects (e.g., mirrors, glass, or shiny objects) in the area.
- Maintain an adequate level of lighting. Prefer a cool light source (above 4500K) and avoid monochromatic lighting.

7. OPERATING SYSTEM REQUIREMENTS

To access the ePokratis MedAiConnect application, devices must meet the following minimum operating system requirements:

- **iOS Devices:** iOS version 16.6 or later.

8. INTELLECTUAL PROPERTY

The intellectual property rights of ePokratis MedAiConnect and the various elements contained in the Application, including, without limitation, written information, graphic design, designs, image and audio files, photographic designs, recordings, and, in general, any material accessible from the Application, are the intellectual property of TMA, who own these rights and have duly authorized their inclusion in the Application.

TMA has the exclusive right to exercise these intellectual property rights in any form, particularly the rights of reproduction, distribution, public communication, and transformation.

Any reproduction, transmission, adaptation, translation, modification, public communication, or any other operation related to the entirety or part of the content of the Application, in any form or by any means, electronic, mechanical, or other, is strictly prohibited without prior written authorization from TMA. Any violation of these rights may lead to corresponding civil or criminal proceedings, either judicially or extrajudicially.

Under no circumstances is ePokratis MedAiConnect intended for use by healthcare professionals to provide medical services to individual patients without a corresponding service agreement between the parties involved. Users of ePokratis MedAiConnect may only make private and personal use of the content of the Application. Any commercial or unlawful use of ePokratis MedAiConnect or any of its elements is strictly prohibited.

Users are not allowed to create hyperlinks or online connections to the Application from any internet-accessible platform without obtaining prior written consent from TMA.

9. MODIFICATION

TMA reserves the option to modify at any time and without prior notice the content of these General Terms of Use, the design, presentation, or/and configuration of the Application, and some or all services provided through the Application, and to add new Services. Users agree to periodically review these General Terms of Use to be informed of such updates. Navigation, as well as simple access to ePokratis MedAiConnect, implies acceptance of any modifications made. An updated version of the current General Terms of Use will be permanently available at <https://tma.gr/epokratis-terms-of-use-ios-en/>.

10. GOVERNING LAW AND JURISDICTION

These General Terms of Use are governed by Greek law. For any dispute arising from the contract or due to it, the Courts of Athens shall have exclusive jurisdiction.

11. SUBSCRIPTION TERMS AND MANAGEMENT

Subscription Plans: ePokratis MedAiConnect offers monthly and yearly subscriptions with automatic renewal.

Payment and Automatic Renewal: Payment will be charged to your iTunes Account at confirmation of purchase. Subscriptions automatically renew unless auto-renewal is turned off at least 24 hours before the end of the current subscription period. Your account will be charged for renewal within 24 hours prior to the end of the current subscription period. The renewal cost will be clearly displayed in the app at the time of subscription and after purchase as your current active package. Additionally, your active subscription details, including renewal cost and date, can be viewed in your iTunes Account settings.

Cancellation: Subscriptions may be managed and canceled via your Apple ID account settings. Cancellation takes effect after the current billing cycle; no partial refunds are provided.

Refunds: Refund requests must be made through Apple. TMA does not manage refunds directly.

Unused Free Trial Period: Any unused portion of a free trial period, if offered, will be forfeited upon purchasing a subscription.